

Toledo moves forward with automated license plate reader study

FEB 4, 2022

11:16 PM

Toledo City Council has authorized the Toledo Police Department to engage in a study of automated license-plate readers that could assist with solving crimes, but not without raising other concerns over how the technology might be used.

“It’s an understandable concern. There’s nothing for the community to worry about, unless they’re involved in a crime,” Toledo police Lt. Paul Davis said. “They’re not going to be a person of interest, and we’re not going to be watching them.”

The yearlong study will be in partnership with Flock Safety Group, Axon Enterprises, and the National Police Foundation. The city is not committed to continuing the program once the study is completed.

While automated license-plate readers are not a new concept and they can be used to assist law enforcement, they also make some worry about how privacy rights

might be affected.

“With automatic license-plate readers, they can be as invasive, essentially, as law enforcement wants them to be,” said Gary Daniels, chief lobbyist for the American Civil Liberties Union of Ohio.

“These are devices that can literally track our movements around city streets.... I’m not saying that this is what law enforcement primarily uses it for ... but we have a history of, and even currently, law enforcement using technology for the wrong reasons,” Mr. Daniels said.

The study calls for 25 plate readers to be installed at fixed locations around Toledo at no cost to the city. Exact locations are to be determined, but there are plans to focus them in high-crime areas.

Before the ordinance was passed, a police department panel appeared before a council agenda-review meeting to explain more details about the study and why it’s important.

“This will be a fantastic investigative tool for us,” Deputy Chief David Mueller told council, which later approved the proposal unanimously.

“This is potentially really exciting technology that we’re going to have,” Councilman Katie Moline said during the discussion. “Any time we can have more tools in our toolbox to help law enforcement and public safety, I think we should engage in that.”

If the police department gets a tip, having license plate information already in the database could help make the investigation process more efficient.

“If somebody calls in and says, ‘A blue Honda Accord was involved in this shooting,’ then we can go into the data and do a search for that specific make and model of vehicle,” Deputy Chief Mueller said. “And that will also capture the data from the license plate, and we can have an investigator follow up on that.”

When Ms. Moline raised the possibility of privacy issues during the agenda review discussion, Deputy Chief Mueller said the city law department reviewed the study and flagged no potential legality issues.

The motion-activated cameras would capture images for storage in a cloud database for 30 days until they are disposed of. Deputy Chief Mueller said data would be in a “secure location” where only law enforcement would have access.

According to the Flock Safety website, if a stolen vehicle or a wanted person enters the community and is picked up by a reader, police are automatically notified.

TPD already has mobile readers equipped in some of its patrol cars.

Attorney Andrew Mayle, who was part of a class-action lawsuit that led to Toledo's automated traffic-camera program being suspended in 2020, said the plate readers create a different cause for concern.

"The city itself has no profit motive, per se, in having the surveillance cameras, but it's the private company that has the profit motive, that is the danger," he said.

He also sees more potential for the new cameras to be misused.

"The new camera system that they're entertaining is potentially more ripe for abuse than the revenue-generating cameras, in a way," he said. "Once the new company gets the data that collects how often any particular car tied to a certain license plate drives past one of the cameras and then just collects that data ... who knows how that can be used and abused?"

The National Conference of State Legislators found at least 16 states have laws that restrict or regulate the use of readers and data they generate. Many states require retrieved data to be destroyed within a certain time period unless that information becomes part of an ongoing investigation.

Ohio has no current laws regarding the technology, but Mr. Daniels believes regulation would be a step in the right direction.

"It should be a no-brainer for the state to take a look at this and say 'hey, we don't want to have different policies across the state.... Let's get some sort of basic common sense uniformity with regard to regulations,'" he said.

Readers have come into play in Ohio cities as large as Dayton and as small as Macedonia, but skepticism remains about the scope and scale of their usage as technology continues to improve. Lieutenant Davis said that as the technology gets better and more affordable, it also becomes more widespread.

"It all boils down to, how much do you trust law enforcement, how much do you trust the government with technology that can surveil our whereabouts, or piece it together after the fact and what they might do with that information?" he said.

The Toledo Police Department has not yet indicated a set date for the cameras' installation.

Toledo's traffic cameras were used to send automated tickets to drivers who violated red traffic signals or were caught speeding. The city suspended their use after the Ohio Supreme Court ruled that its use of hearing officers to handle ticket appeals violated the jurisdiction of Toledo Municipal Court.

First Published February 4, 2022, 11:16 p.m.